

BHARAT COKING COAL LIMITED

(A Subsidiary of Coal India Limited)

KOYLA BHAWAN, KOYLA NAGAR, DHANBAD - 826005

CONDUCT, DISCIPLINE AND APPEAL (CDA) RULES, 1978

(Amended and updated for BCCL Executives and Employees)

CHAPTER I: GENERAL

Rule 1: Short Title and Commencement

(1) These rules may be called Coal India Executives' Conduct, Discipline and Appeal Rules, 1978 as adopted by Bharat Coal

(2) They shall come into force with effect from 24th February 1978.

Rule 2: Application

These rules shall apply to all employees holding posts in the executive cadre scales of pay and management cadres in BCC

Rule 3: Definitions

In these rules, unless the context otherwise requires:

(a) 'Company' means Bharat Coking Coal Limited (BCCL) and Coal India Limited (CIL).

(b) 'Board' means the Board of Directors of BCCL / CIL.

(c) 'Disciplinary Authority' means the authority specified in the Schedule competent to impose penalties.

(d) 'Appellate Authority' means the authority specified in the Schedule to hear appeals against orders of Disciplinary Authority

(e) 'Competent Authority' means the Chairman-cum-Managing Director (CMD) or Director authorized by the Board.

(f) 'Employee' means an executive employee of BCCL covered under Rule 2.

CHAPTER II: CONDUCT RULES

Rule 4: General Conduct and Integrity

- (1) Every employee of the Company shall at all times maintain absolute integrity, devotion to duty, and do nothing which is u
- (2) Every employee holding a supervisory position shall take all possible steps to ensure the integrity and devotion to duty o

Rule 5: Misconduct

Without prejudice to the generality of the term 'misconduct', the following acts of omission and commission shall treat as spe

- (1) Theft, fraud, dishonesty, embezzlement or misappropriation in connection with the Company's business or property.
- (2) Taking or giving illegal gratification, bribes, or demanding commission in any business transactions.
- (3) Insubordination or disobedience, whether alone or in combination with others, to any lawful and reasonable order of a su
- (4) Habitual late attendance, willful absence from duty without authorized leave, or overstaying sanctioned leave without val
- (5) Drunkenness, riotous, disorderly or indecent behavior in the company premises or mining areas.
- (6) Habitual negligence or neglect of work, sleeping while on duty in mining operations.
- (7) Damage to any property of the Company, sabotage, or unauthorized interference with safety equipment and coal produc
- (8) Sexual harassment of working women at workplace including unwelcome physical contact, sexual advances, or sexually
- (9) Engaging in unauthorized private trade, employment, or commercial activities directly or indirectly.
- (10) Canvassing or using outside political/non-official influence to further service interests.

CHAPTER III: DISCIPLINE AND SUSPENSION

Rule 26: Suspension

- (1) The Appointing Authority or Disciplinary Authority or any authority empowered in that behalf by the Board may place an employee under suspension if:
 - (a) Where a disciplinary proceeding against him is contemplated or is pending; or
 - (b) Where a case against him in respect of any criminal offense is under investigation, inquiry or trial.
- (2) An employee placed under suspension shall be entitled to receive Subsistence Allowance equal to 50% of his basic pay.
- (3) If the period of suspension exceeds six months, and the delay in disciplinary proceedings is not directly attributable to the employee, the period of suspension shall be deemed to be a period of service.
- (4) Suspension is an interim administrative measure and does not constitute a formal penalty under these rules.

Rule 27: Nature of Penalties

The following penalties may, for good and sufficient reasons, be imposed on an employee of BCCL:

Minor Penalties:

- (a) Censure / Warning in writing.
- (b) Withholding of promotion for a specified period.
- (c) Recovery from pay of the whole or part of any pecuniary loss caused to the Company by negligence or breach of orders.
- (d) Withholding of increments of pay with or without cumulative effect.
- (e) Reduction to a lower stage in the time scale of pay for a period not exceeding 3 years without cumulative effect.

Major Penalties:

- (f) Reduction to a lower stage in the time-scale of pay for a specified period with directions regarding increments.
- (g) Reduction to a lower grade, rank, post, or service scale.
- (h) Compulsory retirement from service.
- (i) Removal from service which shall not be a disqualification for future employment.
- (j) Dismissal from service which shall ordinarily be a disqualification for future employment in BCCL and CIL subsidiaries.

CHAPTER IV: DISCIPLINARY INQUIRY AND APPEALS

Rule 29: Procedure for Imposing Major Penalties

- (1) No order imposing any major penalty shall be made except after an inquiry held in the manner provided in this rule.
- (2) The Disciplinary Authority shall draw up or cause to be drawn up the substance of the imputations of misconduct into de
- (3) A statement of imputations of misconduct, list of documents, and list of witnesses shall be served to the charged employ
- (4) An Inquiring Authority (Inquiry Officer) may be appointed to inquire into the charges. The employee has the right to inspe

Rule 34: Appeals and Right to Appeal

- (1) An employee may prefer an appeal against any order imposing any penalty passed by the Disciplinary Authority to the d
- (2) Period of Limitation: An appeal shall be preferred within 45 (forty-five) days from the date of communication of the order
- (3) Form of Appeal: The appeal shall be presented to the Appellate Authority, containing all material statements and argume
- (4) Consideration of Appeal: The Appellate Authority shall consider whether the procedure was followed, whether findings a
- (5) The Appellate Authority may confirm, reduce, enhance, or set aside the penalty after giving reasonable opportunity of re